

OF THE LEGAL ESTATE IN THE TRUSTEE.

UPON this subject we propose to treat, *First*. Of vesting the legal estate in the trustee; *Secondly*. Of the properties and devolution of the legal estate; and *Thirdly*. What persons taking the legal estate will be bound by the trust.

SECTION I.

OF VESTING THE LEGAL ESTATE IN THE TRUSTEE.

I. With reference to the *Statute of Uses*.¹

1. **Statute of uses.**—In the case of a simple trust, as the statute of 27 Henry the Eighth operates upon the *first use*, whether designated in the instrument as a *use* or *trust*, if a conveyance or devise be to A. and his heirs “*in trust*” for B. and his heirs, the possession will be executed in B. (a); and

(a) As in *Austen v. Taylor*, 1 Eden, &c. See *Broughton v. Langley*, 2 361; *Robinson v. Grey*, 9 East, 1; Salk. 679; *Chapman v. Blissett*, Cas. Williams v. Waters, 14 M. & W. 166, t. Talb. 150.

¹ *Statute of Uses.*—Even where direct words of trust are used, it may be that the trustee will receive no title, the statute causing both the equitable and legal title to vest immediately in the cestui que trust; *Witham v. Brooner*, 63 Ill. 344; *Thatcher v. Omans*, 3 Pick. 521; *Upham v. Varney*, 15 N. H. 466; *Bayer v. Cockerill*, 3 Kan. 282; *Parks v. Parks*, 9 Paige, 107; *Ramsay v. Marsh*, 2 McCord, 252; *Jackson v. Fish*, 10 Johns. 456; *Moore v. Shultz*, 13 Pa. St. 98; the intervening estate being immediately terminated; *Hutchins v. Heywood*, 50 N. H. 495: the statute is in force in most of the states; for its history in America, see 4 Kent Com. 299; 2 Wash. Real Prop. 152. See also the statutes of the various states; and their practical application may be followed through numerous decisions; *Marden v. Chase*, 32 Me. 329; *Dennett v. Dennett*, 40 N. H. 498; *Sherman v. Dodge*, 28 Vt. 26; *Baptist Soc. v. Hazen*, 100 Mass. 322; *Johnson v. Johnson*, 7 Allen, 197; *Nightingale v. Hidden*, 7 R. I. 132; *Bryan v. Bradley*, 16 Conn. 474; *Jackson v. Cary*, 16 Johns. 302; *Prince v. Sisson*, 13 N. J. Eq. 168; *Deibert's App.* 78 Pa. St. 206; *Earp's App.* 75 Pa. St. 119; *Matthews v. Ward*, 10 Gill. & J. 443; *Bass v. Scott*, 2 Leigh. 359; *Smith v. Lookabill*, 76 N. C. 465; *Ramsay v. Marsh*, 2